

25SMCV01807 25SMCV01807

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Case Number: 25SMCV01807 Hearing Date: September 23, 2026 Dept: M

CASE NAME: Corbin v. Enterprise

Rent-A-Car Company of Los Angeles LLC, et al.

CASE NO.: 25SMCV01807

MOTION: Motion

to Quash Subpoena

HEARING DATE: 9/23/2026

Legal

Standard

Code of Civil Procedure ("CCP")

section 1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (CCP § 1987.1(a).) "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Id.)

As a general rule, all unprivileged

information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (CCP § 2017.010; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.) Information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.)

Subpoenas which seek consumer records, including personal financial information, must adhere to additional procedural requirements laid out in CCP § 1985.3. The subpoena must first be served on the consumer at least five days before it is served on the nonparty from whom records are sought (with a five-day extension if served by mail, pursuant to CCP § 1013). (CCP, § 1985.3(b)(3).) A subpoena must be served on the custodian of records at least fifteen days before the date upon which records are to be produced, plus any statutory extensions. (Id., §§ 1985.3(d), 2020.410(c).)

CCP section 2025.410(c) requires that a motion to quash a deposition notice must be accompanied by a meet and confer declaration. Additionally, a motion to quash production of documents at a deposition must be accompanied by a separate statement setting forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled. (CRC rule 3.1345(a)(5).)

ANALYSIS

Plaintiff Julia Corbin moves to quash Defendant Shreya Verma's deposition subpoenas, including subpoenas to the following:

- a) PROVIDENCE ST JOHNS HEALTH CENTER- MEDICAL
- b) PROVIDENCE HEALTH SYSTEMS, BUSINESS OFFICE
- c) PROVIDENCE ST. JOHNS HEALTH CENTER-RADIOLOGY
- d) NEAL SHANBLATT, MD
- e) SPERTUS, JOSEPHS & MINNICK, LLP

f) T-MOBILE USA, INC. C/O CSC LAWYERS, INC.

Plaintiff also requests sanctions
in the amount of \$3,560.00 against Defendant and/or her attorneys of record
Lewis Brisbois Bisgaard & Smith LLP.

Defendant represents that the
motion is substantively moot because she withdrew the subject subpoenas
pursuant to counsel's meet and confer agreements following the motion. (Ryan
Decl., Exs. B-C.) The only issue remaining is whether the Court should impose discretionary
sanctions. CCP section 1987.2 provides that "the court may in its discretion
award the amount of reasonable expenses incurred in making or opposing [a
motion to quash], including reasonable attorney's fees, if the court finds the
motion was made or opposed in bad faith or without substantial justification or
that one or more of the requirements of the subpoena was oppressive." (CCP §
1987.2(a), see § 2023.010(a).) Limited sanctions are warranted. Defendant's issuance
of admittedly overbroad subpoenas necessitated this motion. Plaintiff met and
conferred with Defendant in good faith prior to bringing this motion, but
Defendant initially declined to withdraw the subpoenas. The Court will hold the
parties to their agreement that the motion was to be taken off calendar if
defendant withdrew the subpoenas and paid \$561.65 of costs. Accordingly, the
request for sanctions is GRANTED in the reduced amount of \$561.65. Sanctions
are imposed against Defendant and/or her attorneys of record and payable to
Plaintiff's counsel within 30 days.